

the Act did not intend that the *declaration itself* should be in writing; for the ninth section enacts, that “all grants and assignments of any trust or confidence shall *likewise be in writing*, signed by the party granting or assigning the same, or by such last will or devise (e);” but whatever may have been the actual intention of the legislature, the construction put upon the clause in practice is now firmly established.¹

(e) *i.e.* A will executed in conformity with section 5. Note that *Crooke v. Brooking*, 2 Vern. 50, 106, was before the Statute of Frauds.

Cairns observed that “the law always has been, and the law continues to be, that in addition to a specified ground of demurrer you may, at the bar, allege any other ground of demurrer which appears upon the face of the bill.”

¹ *Proof*: If trusts are manifested and proved in writing, it is sufficient. *Black v. Black*, 4 Pick. 236; *Gibson v. Foote*, 40 Miss. 788; *Gerry v. Stimson*, 60 Me. 186; *Pinney v. Fellows*, 15 Vt. 525. In many of the states the trust must be created or declared by an instrument in writing signed by the party, but these words apparently are construed as synonymous with those of the English statute. *Jenkins v. Eldredge*, 3 Story, 294; *Cook v. Barr*, 44 N. Y. 158; *Corse v. Leggett*, 25 Barb. 394; *Pinnock v. Clough*, 16 Vt. 500; *White v. Douglass*, 3 Seld. 568; *Pratt v. Ayer*, 3 Chand. 265; *Sheet's Est.* 52 Pa. St. 257; *Blodgett v. Hildreth*, 103 Mass. 486; *Browne*, St. Frauds, § 104. *Parol*: Trusts may be created, but not proved by parol. *Steere v. Steere*, 5 Johns. Ch. 1; 9 Am. Dec. 256; *Groves' Heirs v. Fulsome*, 16 Mo. 543; 57 Am. Dec. 247; *Cornell v. Utica R. R. Co.* 61 How. Pr. 192. Trusts are not within the statute. *Johnson v. Habbell*, 2 Stock. Ch. 332; *Rice v. Burnett*, 1 Spear's Eq. 579; 42 Am. Dec. 336. The grantor is estopped from denying that a consideration was paid, by the ordinary clause in a deed acknowledging the receipt of the consideration, and parol evidence on the point is inadmissible, but it may be allowed to vary, explain, or contradict the amount of consideration. 2 Dev. Deeds, § 836; *Twomey v. Crowley*, 137 Mass. 184; *Aull v. Aull*, 80 Mo. 199; *Rhine v. Ellen*, 36 Cal. 362; *Belden v. Seymour*, 8 Conn. 304; 21 Am. Dec. 661; *Goodspeed v. Fuller*, 46 Me. 141; *M'Crea v. Purmort*, 16 Wend. 460. In absence of fraud, accident, or mistake, the grantor in an absolute deed, with valuable consideration, and that acknowledged, is precluded from showing that the grantee was to hold in trust for him. *Trafton v. Hawes*, 102 Mass. 533; *Russ v. Mebius*, 16 Cal. 350; *Beers v. Beers*, 22 Mich. 42; *Farrington v. Barr*, 36 N. H. 86; *Stackpole v. Robbins*, 47 Barb. 212; *McConnell v. Brayner*, 63 Mo. 461; *Lawson v. Lawson*, 117 Ill. 98. Parol is admissible to show that an apparently absolute deed is a mortgage; *Johnson v. Sherman*, 15 Cal. 287; 76 Am. Dec. 481; *Fowler v. Stoneum*, 11 Tex. 478; 62 Am. Dec. 490; *Hall v. Seville*, 3 G. Greene, 37; 54 Am. Dec. 485; but it must be clear and conclusive; *Corbit v. Smith*, 7 Ia. 60; 71 Am. Dec. 431; as must parol evidence of a trust always. *Snelling v. Utterback*, 1 Bibb. 609; *Hunter v. Bilyeu*, 30 Ill. 246; *Brady v. Parker*, 4 Ired. Eq. 430; *Philpot v. Ellicott*, 4 Md. Ch. 273; *Harper v. Patterson*, 14 C. P. 538; *McNabb v. Nicholl*, 3 L. J. N. S. 21; *Fleming v. Duncan*, 17 Chy. 76; *Shaw v. Shaw*, 17 Chy. 282; *Wilde v. Wilde*, 20 Chy. 521; *McManus v. McManus*, 24 Chy. 118; *Gamble v. Lee*, 25 Chy. 326; *Hutchinson v. Hutchinson*, 6 Chy. 117; *Curry v. Curry*, 26 Chy. 1; *Parsons v. Kendall*, 6 Chy. 408; *Denny v. Lithgow*, 16 Chy. 619; *Ross v. Ross*,